# *Some Metaphysical Considerations Concerning Pragmatism*

## Language, Ontology, and Morality

### 1 *Introduction*

Pragmatism, unlike most schools in the Western tradition, has a datable beginning. In the early 1870s a group of young men in Cambridge, Massachusetts, met to discuss philosophy under a name that Charles Sanders Peirce later said they had chosen "half-ironically, half-defiantly": the Metaphysical Club.[1] Out of those discussions came the principle Peirce published in 1878 as a rule for making our ideas clear: "Consider what effects, that might conceivably have practical bearings, we conceive the object of our conception to have. Then, our conception of these effects is the whole of our conception of the object."[2] William James, who introduced the word "pragmatism" to the public in 1898 and credited Peirce with the principle, later described it as "primarily a method of settling metaphysical disputes that otherwise might be interminable."[3]

[1] Charles Sanders Peirce, *Collected Papers of Charles Sanders Peirce*, ed. Charles Hartshorne and Paul Weiss, vol. 5 (Cambridge, MA: Harvard University Press, 1934), 5.12. On the Club and its members, see Louis Menand, *The Metaphysical Club* (New York: Farrar, Straus / Giroux, 2001).

[2] Charles Sanders Peirce, "How to Make Our Ideas Clear," *Popular Science Monthly* 12 (January 1878): 293. Peirce restates the maxim in Charles Sanders Peirce, "A Definition of Pragmatic and Pragmatism," in *Pragmatism: The Classic Writings*, ed. H. S. Thayer (1902; Indianapolis: Hackett, 1982).

[3] James introduced the term in William James, "Philosophical Conceptions and Practical Results," *University Chronicle* 1 (1898): 287–310. The quotation is from William James, *Prag-*

From the start, then, pragmatism's relation to metaphysics was ambiguous. It was a method for dissolving metaphysical disputes, devised by a club that called itself metaphysical, one of whose founders went on to construct one of the most ambitious metaphysical systems of the century.[4] The ambiguity has never been resolved. Dewey described the project of *Experience and Nature* as metaphysics; Richard Rorty later argued that Dewey should not have attempted a metaphysics at all.[5] This essay examines the question as it appears in three contemporary writers who represent distinct strands of the tradition: Rorty's neopragmatism, Robert Brandom's pragmatism about norms, and Richard Posner's legal pragmatism.[6]

The essay argues that the pragmatist claim to have overcome metaphysics is best understood as a relocation. The questions of truth, objectivity, and freedom are moved from the relation between mind and world to the relation between individuals and the communities whose practices institute norms. The relocation succeeds against the tradition's search for foundations. But it makes a claim of its own, that normative statuses are instituted by social practice, and that claim is metaphysical in everything but name. This is why Hegel rather than Kant is pragmatism's real ancestor, and why its most serious difficulty, the charge that it reduces morality to conformity, can be answered only from within that Hegelian inheritance. Section 2 sets out how pragmatism approaches meta-

*matism: A New Name for Some Old Ways of Thinking* (New York: Longmans, Green, 1907), lecture 2.

[4] See Charles Sanders Peirce, "The Architecture of Theories," *The Monist* 1, no. 2 (1891): 161–176; Charles Sanders Peirce, "The Doctrine of Necessity Examined," *The Monist* 2, no. 3 (1892): 321–337; and Charles Sanders Peirce, "Evolutionary Love," *The Monist* 3, no. 2 (1893): 176–200. These develop the doctrines of objective chance (tychism) and continuity (synechism). Ian Hacking's *The Taming of Chance* closes with Peirce, treating him as the philosopher who took the statistical revolution to its metaphysical conclusion; see Ian Hacking, *The Taming of Chance* (Cambridge: Cambridge University Press, 1990).

[5] John Dewey, *Experience and Nature* (Chicago: Open Court, 1925), 51, where metaphysics is characterized as "cognizance of the generic traits of existence." See also Richard Rorty, "Dewey's Metaphysics," in *Consequences of Pragmatism: Essays, 1972–1980* (1977; Minneapolis: University of Minnesota Press, 1982); and Richard Rorty, "Overcoming the Tradition: Heidegger and Dewey," *Review of Metaphysics* 30, no. 2 (1976): 280–305.

[6] Richard Rorty, "Pragmatism, Relativism, and Irrationalism," *Proceedings and Addresses of the American Philosophical Association* 53, no. 6 (1980): 717–738 (hereafter cited as PRI); Robert Brandom, "Freedom and Constraint by Norms," *American Philosophical Quarterly* 16, no. 3 (1979): 187–196 (hereafter cited as FC); Richard A. Posner, *The Problems of Jurisprudence* (Cambridge, MA: Harvard University Press, 1990) (hereafter cited as PJ).

physical questions. Section 3 follows the approach into morality by way of Brandom's account of norms. Section 4 returns to Hegel.

## 2 *The Pragmatist Approach to Metaphysics*

Hilary Putnam identified four characteristics of pragmatism: the rejection of skepticism, the acceptance of fallibilism, the rejection of sharp dichotomies such as fact and value or mind and body, and the primacy of practice.[7] For this essay's purposes Rorty's three characterizations, offered in his 1979 presidential address to the American Philosophical Association, are more useful, because they state what pragmatism denies: that the objects of philosophical theorizing have essences, that facts and values differ in kind, and that inquiry is constrained by anything other than conversation.[8] The first and third organize this section; the second opens the next.

*Anti-essentialism.* Pragmatism, Rorty wrote, "is simply anti-essentialism applied to notions like 'truth,' 'knowledge,' 'language,' 'morality,' and similar objects of philosophical theorizing."[9] The tradition that runs from Plato through Descartes to Kant assumes that such notions have essences philosophy can discover, and that discovering them will ground the rest of inquiry. The pragmatist denies that there are such essences to discover. Truth is the central case. On the correspondence theory, a statement is true when it corresponds to the fact it describes: language maps the world as a function maps inputs to outputs, and a true proposition preserves the structure of the state of affairs it represents.[10] The pragmatist objects that this picture explains nothing, since there is no way

[7] Summarized in Catherine Legg and Christopher Hookway, "Pragmatism," Stanford Encyclopedia of Philosophy, https://plato.stanford.edu/entries/pragmatism/, drawing on Hilary Putnam, *Pragmatism: An Open Question* (Oxford: Blackwell, 1995).

[8] PRI, 719, 721, 727.

[9] PRI, 719.

[10] The mathematical analogy can be made precise. On the correspondence theory, a true proposition stands to the fact it describes as the image of a structure-preserving map stands to its domain, so that the logical form of the one is preserved in the other. The clearest version is Wittgenstein's picture theory: "A picture has logico-pictorial form in common with what it depicts." Ludwig Wittgenstein, *Tractatus Logico-Philosophicus*, trans. D. F. Pears and B. F. McGuinness (1921; London: Routledge & Kegan Paul, 1961), 2.2. The ontological counterpart is Quine's criterion of ontological commitment, that to be is to be the value of a bound variable: to say that something exists is to say that there is at least one $x$ such that $x$ has the relevant property. W. V. O. Quine, "On What There Is," *Review of Metaphysics* 2, no. 5 (1948): 21–38.

to step outside our statements and check how well they map a world described independently of them.

What pragmatists put in place of correspondence is less settled than their critics often assume. James held that "the true" is "only the expedient in the way of our thinking."[11] Peirce held that truth is "the opinion which is fated to be ultimately agreed to by all who investigate."[12] Rorty rejected both. For him truth is not the kind of thing that has a nature a theory could capture, and the word's uses, to endorse a claim or to caution that a justified claim might still be false, require no theory to explain.[13] Anti-essentialism about truth therefore does not yield a pragmatist theory of truth. It yields a family of alternatives united mainly by what they reject.

*Against grounding.* Rorty's third characterization is that there are "no constraints on inquiry save conversational ones": no wholesale constraints derived from the nature of objects, of the mind, or of language, only the retail constraints supplied by the objections of other inquirers.[14] The target is what he calls grounding, the philosophical project of "finding constraints, demonstrating necessities, finding immutable principles to which to subordinate oneself."[15] Grounding takes two forms: "the Platonic strategy of postulating novel objects for treasured propositions to correspond to, and the Kantian strategy of finding principles which are definitory of the essence of knowledge, or representation, or morality, or rationality."[16] Descartes's method belongs to the same family, since for Descartes inquiry must begin from clear and distinct ideas, and what cannot be derived from them does not count as knowledge.[17]

This is not skepticism. Hume doubts that our beliefs can be rationally justified; the pragmatist changes the question, asking not whether beliefs correspond to reality but whether they are worth holding, which is to say what dif-

[11] James, *Pragmatism*, lecture 6.

[12] Peirce, "How to Make Our Ideas Clear," 300.

[13] Richard Rorty, "Pragmatism, Davidson and Truth," in *Objectivity, Relativism, and Truth: Philosophical Papers, Volume 1* (1986; Cambridge: Cambridge University Press, 1991), which distinguishes the endorsing, cautionary, and disquotational uses of "true."

[14] PRI, 727.

[15] PRI, 727, 730.

[16] PRI, 725.

[17] René Descartes, "Discourse on the Method," in *The Philosophical Writings of Descartes*, trans. John Cottingham, Robert Stoothoff, and Dugald Murdoch, vol. 1 (1637; Cambridge: Cambridge University Press, 1985); René Descartes, "Meditations on First Philosophy," in *The Philosophical Writings of Descartes*, trans. John Cottingham, Robert Stoothoff, and Dugald Murdoch, vol. 2 (1641; Cambridge: Cambridge University Press, 1984).

ference holding them makes. It follows that pragmatism has no method for certifying that a belief is true. "There is no method," Rorty writes, "for knowing when one has reached the truth, or when one is closer to it than before."[18] What pragmatism offers instead is a practice of justification, the exchange of reasons among inquirers, whose results are always provisional.

*Truth and time.* If justification is provisional, truth must stand in some relation to time. Posner states the relation directly:

> Pragmatists believe that truth is what free inquiry—unforced, undistorted, and uninterrupted—would eventually discover about the objects of inquiry. Since the process of inquiry never ends, this implies that truth always lies beyond our horizon: it is there, but we aren't. The pragmatic concept of truth is related to the test of time, but complexly. The pragmatic concept is forward-looking; truth is the destination we have not yet arrived at, but under the right conditions we can hope to arrive there eventually. The test of time is backward-looking; some of our beliefs are true, and they are probably the ones that, having survived the longest, command the most robust consensus. But the two approaches are at one in referring truth to a process of belief formation that unfolds over time.[19]

The passage combines two ideas. The backward-looking one is common ground among pragmatists: beliefs that have survived long and wide scrutiny have earned a presumption in their favor, and the broadening of consensus over time, across cultures and perspectives, is what corrects the partiality of any one of them.[20] The forward-looking idea is Peirce's, and here Posner's sources part company. Rorty rejected the notion of an ideal end of inquiry on the ground that it smuggles the God's-eye view back into pragmatism by relocating it to the future.[21] The disagreement matters. If truth is where inquiry would converge, pragmatism retains an ideal of objectivity beyond any actual community's agreement. If it is not, the question arises whether truth is anything more than what a given community currently accepts, and that question is sharpest in morality.

[18] PRI, 729.

[19] PJ, 114.

[20] Posner calls this the perspectival theory of truth, which "emphasizes the extent to which a person's outlook is shaped by his culture and historical situation and denies our ability to achieve a God's-eye view." PJ, 115.

[21] See Richard Rorty, "Solidarity or Objectivity?," in *Objectivity, Relativism, and Truth: Philosophical Papers, Volume 1* (1985; Cambridge: Cambridge University Press, 1991); and Richard Rorty, *Consequences of Pragmatism: Essays, 1972–1980* (Minneapolis: University of Minnesota Press, 1982), xxv. Posner's phrase "unforced, undistorted" also echoes Habermas's conditions for an ideal speech situation.

## *3 Pragmatism and Morality: Norms and Language*

Rorty's second characterization of pragmatism is that "there is no epistemological difference between truth about what ought to be and truth about what is, nor any metaphysical difference between facts and values, nor any methodological difference between morality and science."[22] Morality is therefore no special problem for the pragmatist. Moral beliefs are justified the way other beliefs are, by the reasons that can be given for them in conversation with others.

This is not relativism, which Rorty defines as "the view that every belief on a certain topic, or perhaps about any topic, is as good as every other," a view he adds that no one actually holds.[23] The pragmatist thinks some moral beliefs are much better than others. What he denies is that there is a neutral standpoint, outside every community's practices of justification, from which whole systems of belief could be ranked. Rorty later called this position ethnocentrism: we can justify our beliefs only to those who share enough of them to recognize our reasons as reasons.[24] The question is whether this leaves morality with any authority beyond a community's agreement. Brandom's account of norms is the most developed attempt to answer it.

*Freedom and constraint by norms.* Brandom takes language as his model. Whether an assertion is correct is settled not by its correspondence to a fact but by norms of correct usage, and those norms are instituted by the practices of a linguistic community, that is, by its members' assessments of one another's performances as appropriate or inappropriate and their responses to them.[25] The decisive feature of a norm, as against a mere regularity, is that it can be violated. A counterexample refutes a regularity; a violation does not refute a norm but falls under it, since the community treats the deviant performance as a mistake.[26] Norms of this kind also underwrite our classifications. The link

[22] PRI, 721.

[23] PRI, 727.

[24] Rorty, "Solidarity or Objectivity?"

[25] Brandom defines a social practice as "a respect of similarity evinced by performances which do or would (under circumstances which must be specified whenever we specify a particular practice) elicit some response from the community." FC, 188.

[26] The distinction descends from Wittgenstein's remarks on rule-following; see Ludwig Wittgenstein, *Philosophical Investigations*, trans. G. E. M. Anscombe (Oxford: Blackwell, 1953), §§185–242; and the problem Saul Kripke drew from them in Saul A. Kripke, *Wittgenstein on Rules and Private Language* (Cambridge, MA: Harvard University Press, 1982). Brandom develops it at length in Robert B. Brandom, *Making It Explicit: Reasoning, Representing, and Discursive Commitment* (Cambridge, MA: Harvard University Press, 1994).

between an object and the kind under which it falls, what Brandom calls a thing-kind, is established in practice,[27] and a kind counts as objective when whether something falls under it does not depend on how the community takes it.[28]

Posner distinguishes three senses of objectivity in current use. The first is correspondence to reality, which the pragmatist rejects. The second is replicability: "a finding is objective... if different investigators, not sharing the same ideological or other preconceptions... would be bound to agree with it." The third, which Posner adopts, treats objectivity as "merely reasonable—that is, as not willful, not personal, not (narrowly) political, not utterly indeterminate though not determinate in the ontological or scientific sense, but as amenable to and accompanied by persuasive though not necessarily convincing explanation."[29] Brandom's account explains why the third sense is not simply a weak substitute for the first. Even the line between what is objective and what is merely social is drawn in practice:

> We may think instead of the difference as genuine, but social rather than objective, according to our criterial classification. On this view, whether a certain body of behavior constitutes a set of social practices (and hence expresses a normative constraint on performance) or merely exhibits complex but objective regularities is not a matter of objective fact. It is not, in other words, independent of how any community treats or responds to that body of behavior. The criterial classification of things into objective and social is itself a social, rather than objective or ontological, categorization of things according to whether we treat them as subject to the authority of a community or not.[30]

This is where pragmatism's relation to metaphysics comes most clearly into view. Brandom's thesis is not a refusal to answer a metaphysical question; it is an answer to one, a claim about the status of the very distinction on which the tradition's metaphysics rests. Pragmatism has not left metaphysics behind. It has moved metaphysics' central question from the relation between mind and world to the practices of communities. Legal personhood offers a concrete in-

[27] A thing-kind is the conceptual link between a particular object and the general category to which it belongs, established not by intrinsic properties of the object but by the norms governing the use of the term in a linguistic community.

[28] Brandom's notion of the objective should not be confused with Kant's noumenon. The noumenon lies in principle beyond cognition, whereas Brandom's objective kinds are known. What makes them objective is that the community treats its own takings as answerable to them rather than constitutive of them.

[29] PJ, 7.

[30] FC, 190.

stance. Whether an entity counts as a person, a bearer of rights and duties, depends on how the legal community treats it, and Dewey argued in 1926 that "'person' signifies what law makes it signify," which is Brandom's thesis applied to a single category.[31]

*From language to freedom.* Brandom's account of freedom begins from Kant, for whom a rational being differs from everything else in nature in having "the capacity to act in accordance with the representation of laws, that is, in accordance with principles."[32] Freedom, on this account, "consists in constraint by norms rather than simply by causes."[33] If the distinction between norm and cause is itself social, then so is freedom in Kant's sense. To be free is to be treated as subject to norms, as someone who can be held responsible and can therefore make mistakes, and that is to be recognized as a member of a community. The inference needs care. Freedom on this view is not conformity to a community's norms but answerability to them. A member who violates a norm remains a member; the violator is exactly the person to whom the norm applies, which is what distinguishes a norm from a regularity in the first place.

*Moral objectivity.* Posner states the difficulty plainly: "the underlying problem of moral objectivity is that there are neither facts to which moral principles correspond (as scientific principles, for example, appear to correspond to things in nature) nor a strong tendency for moral principles to converge."[34] His answer, developed for law but applicable to morality generally, is that moral principles are objective enough for practical purposes when "the members of society... agree on moral principles to a level of detail that enables a legal code to be derived from those principles."[35] Moral truth, on this view, consists in the principles a community holds in common and on which its identity depends.[36]

[31] John Dewey, "The Historic Background of Corporate Legal Personality," *Yale Law Journal* 35, no. 6 (1926): 655. Dewey's own criterion for what counts as a legal subject is consequential: an entity is a right-and-duty-bearing unit if it behaves differently depending on whether rights and duties are ascribed to it. Dewey, 661.

[32] Immanuel Kant, *Groundwork of the Metaphysics of Morals*, trans. Mary Gregor (1785; Cambridge: Cambridge University Press, 1997), 4:412.

[33] FC, 192.

[34] PJ, 236.

[35] PJ, 236.

[36] By "sacred" is meant not the religious specifically, though it includes the religious, but whatever a community treats as necessary to its conception of its own identity. The notion of continuance matters here: principles are tested over time through deliberation and retained or abandoned according to whether the community regards them as essential to what it is.

Stated this way, the position faces an obvious objection. If morality consists in the principles a community holds sacred, then the reformer who challenges those principles is by definition wrong, and in a slaveholding society the abolitionist would be the immoral party. Critics from Putnam to Habermas have pressed this objection against Rorty's ethnocentrism, and it is fatal to any version of pragmatism that identifies moral truth with current agreement.[37] Brandom's distinction between answerability and conformity is the beginning of a reply, but only the beginning. What is still needed is an account of how norms can change from within, and for that pragmatism has to return to its source.

## *4 Conclusion: The Hegelian Roots of Pragmatism—History and the Individual*

Pragmatism, on the reading developed here, is less a rejection of the tradition that runs from Plato to Kant than a reorientation of it: an attempt to understand philosophy not as the laying of foundations but as a practice carried on within history. Rorty called the tradition's research programs "historical relics, left over from the Enlightenment's misguided search for the hidden essences of knowledge and morality."[38] The path pragmatism follows instead was first taken by Hegel, whose description of philosophy as "its own time apprehended in thoughts" Rorty adopted as pragmatism's own.[39] Truth, on this view, is found not beyond history but in the successive stages through which a community's thought develops.

"Community" in this sense covers any group sharing norms and practices, from a nation to a scientific discipline.

[37] Hilary Putnam, *Reason, Truth and History* (Cambridge: Cambridge University Press, 1981), chap. 5; Jürgen Habermas, "Richard Rorty's Pragmatic Turn," in *Rorty and His Critics*, ed. Robert B. Brandom (Oxford: Blackwell, 2000).

[38] PRI, 732.

[39] G. W. F. Hegel, *Elements of the Philosophy of Right*, ed. Allen W. Wood, trans. H. B. Nisbet (1820; Cambridge: Cambridge University Press, 1991), Preface. Rorty renders it "philosophy is its time grasped in thought." PRI, 737. On the non-metaphysical reading of Hegel that pragmatists favor, see Paul Redding, "Georg Wilhelm Friedrich Hegel," Stanford Encyclopedia of Philosophy, https://plato.stanford.edu/entries/hegel/; Robert B. Pippin, *Hegel's Idealism: The Satisfactions of Self-Consciousness* (Cambridge: Cambridge University Press, 1989); and Robert B. Brandom, "Some Pragmatist Themes in Hegel's Idealism: Negotiation and Administration in Hegel's Account of the Structure and Content of Conceptual Norms," *European Journal of Philosophy* 7, no. 2 (1999): 164–189.

The Hegelian inheritance is clearest in the account of freedom. Hegel charged that Kant's moral philosophy was an "empty formalism,"[40] and Brandom restates the charge precisely: Kant's account "ignores the content of the norms involved, linking freedom to the purely formal fact of constraint by some norm or other."[41] For Hegel the content of norms is supplied by the historical life of a community. Brandom's contribution is to explain how, through the social practices that institute norms, which provide "the cultural-historical particularity of the content of norms which Hegel sought in vain in Kant."[42]

The same account answers the objection with which the previous section closed. Constraint by norms does not only make one answerable; it makes a distinctive kind of freedom possible, which Brandom calls expressive freedom:

> Expressive freedom consists in the generation of new possibilities of performance which did not and could not exist outside the framework of norms inherent in the social practices which make up the language. One acquires the freedom to believe, desire, and intend the existence of novel states of affairs only insofar as one speaks some language or other, is constrained by some complex of social norms. Expressive freedom is made possible only by constraint by norms, and is not some way of evading or minimizing that constraint.[43]

A language's finite norms make possible an unbounded range of new sentences, and among the new things a speaker can say are claims about the community's own norms, including the claim that they have been misapplied, or are wrong. This is how moral reform actually proceeds. When Frederick Douglass asked in 1852 what the Fourth of July meant to the American slave, he appealed to no standard outside his audience's practices. He turned the nation's professed principles against its conduct, and the speech drew its force from the fact that his audience could not disown the norms he invoked.[44] The reformer is not someone who has escaped the community's norms but someone who uses them more fully than the community has. Hegel's philosophy of history is, at bottom, an account of this process, in which communities discover that

[40] Hegel, *Elements of the Philosophy of Right*, §135 Remark.
[41] FC, 193.
[42] FC, 193.
[43] FC, 194, where Brandom draws on Chomsky's point that a finite set of rules can generate an unbounded range of new sentences.
[44] Frederick Douglass, *What to the Slave Is the Fourth of July?*, Speech delivered at Corinthian Hall, Rochester, NY, July 5, 1852.

their practices fail the norms those practices embody, and change.[45] Pragmatist morality, on this reading, is not conformity. It is participation in a practice of justification whose norms can be revised from within, by the very freedom those norms make possible.

What the essay leaves open is the status of the relocation itself. Rorty regarded Heidegger and Dewey as allies, each asking in effect, "given that this is how philosophy has been, what, if anything, can philosophy be now?"[46] Heidegger saw it differently, and in an appendix to "The Age of the World Picture" he named pragmatism directly: "'Americanism' is something European. It is an as-yet-uncomprehended species of the gigantic," and "the American interpretation [*Interpretation*] of Americanism by means of pragmatism still remains outside the metaphysical realm."[47] On this account pragmatism has not overcome metaphysics; it is modern metaphysics that has not yet understood itself, and a truth measured by practical consequences would be, on Heidegger's later account of technology, one more version of the conception of beings as resources to be put to work. If pragmatism takes the practical bearings of a concept to be the whole of its meaning, Heidegger would ask whether it has escaped the metaphysics of the will or given that metaphysics its most consistent expression. Whether the pragmatist reorientation is an exit from metaphysics or its technological completion is a question the tradition has not settled.

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[45] Robert B. Brandom, *A Spirit of Trust: A Reading of Hegel's* Phenomenology (Cambridge, MA: Harvard University Press, 2019).

[46] Rorty, "Overcoming the Tradition," 284.

[47] Martin Heidegger, "The Age of the World Picture," in *The Question Concerning Technology and Other Essays*, trans. William Lovitt (New York: Harper & Row, 1977), 153. This is appendix 12, keyed to the main text's warning that we do not think at all if we believe the gigantic has been explained by the catchword "Americanism" (135). The German is in Martin Heidegger, *Holzwege* (Frankfurt am Main: Vittorio Klostermann, 1950). Russia and America are called metaphysically the same in Martin Heidegger, *Einführung in die Metaphysik* (Tübingen: Max Niemeyer, 1953). On the onto-theo-logical constitution of metaphysics, see Martin Heidegger, *Essays in Metaphysics: Identity and Difference*, trans. Kurt F. Leidecker (New York: Philosophical Library, 1960), 63.

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